

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
TODD PHILLIP,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
MICHAEL VISINTIN, SHIELD NUMBER 14001,
AND POLICE OFFICER KELVIS RODRIGUEZ,
TAX ID. NO. XX4252,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.Basis of venue is place
of occurrence.SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
December 5, 2022

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

TODD PHILLIP

180 South Broadway, Suite 306

White Plains, New York 10605

(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER MICHAEL VISINTIN,
SHIELD NUMBER 14001,
POLICE OFFICER KELVIS RODRIGUEZ,
TAX ID. NO. XX4252,
Police Service Area 7
737 Melrose Avenue
Bronx, New York 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
TODD PHILLIP,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER
MICHAEL VISINTIN, SHIELD NUMBER 14001,
AND POLICE OFFICER KELVIS RODRIGUEZ,
TAX ID. NO. XX4252,**VERIFIED COMPLAINT**Defendants.
-----X

Plaintiff TODD PHILLIP by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, was assigned to Police Service Area 7 (737 Melrose

Avenue, Bronx, New York 10455).

6. That at all times hereinafter mentioned Defendant POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City of New York, and under the authority of his office as a police officer for said city.

7. That at all times hereinafter mentioned Defendant POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned Defendant POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned Defendant POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, was assigned to Police Service Area 7 (737 Melrose Avenue, Bronx, New York 10455).

10. That at all times hereinafter mentioned Defendant POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City of New York, and under the authority of his office as a police officer for city.

11. On December 26, 2019, at approximately 9:45 P.M., Plaintiff TODD PHILLIP was a passenger in a motor vehicle that was stopped in the rear of 680 Tinton Avenue, Bronx, New York.

12. That at the aforementioned time and place, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, approached the motor vehicle in which Plaintiff was a passenger and ordered the occupants to exit the motor vehicle. Plaintiff TODD PHILLIP, and the other occupants of the motor vehicle, complied.

13. After Plaintiff TODD PHILLIP exited the motor vehicle, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, grabbed Plaintiff's arms, twisted them and yanked them behind his back with great force, and tightly applied handcuffs. The motor vehicle was searched. Upon information and belief, the search failed to find any evidence of illegal activity on Plaintiff's part or give cause for Plaintiff's arrest. After the search was completed, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, placed Plaintiff TODD PHILLIP under arrest for criminal possession of a weapon despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

14. During the course of the aforementioned arrest, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted and abused Plaintiff TODD PHILLIP. As a result of this unprovoked assault, Plaintiff TODD PHILLIP sustained serious physical injuries.

15. Following his arrest, Plaintiff TODD PHILLIP was transported to Police Service Area 7 (737 Melrose Avenue, Bronx, New York 10455) where his arrest was processed. Plaintiff TODD PHILLIP was then transported to Bronx Central Booking for arraignment. Following arraignment, Plaintiff TODD PHILLIP was released on his own recognizance.

16. As a result of the complained of conduct, Plaintiff TODD PHILLIP was unlawfully held from December 26, 2019 until December 28, 2019.

17. On September 1, 2022, all criminal charges against Plaintiff TODD PHILLIP were dismissed (Docket Number IND-00203-20/003 - Supreme Court of the State of New York, County of Bronx).

18. On October 12, 2022, within 90 days of the dismissal of all criminal charges, but more than 30 days prior to the commencement of this action, Plaintiff TODD PHILLIP duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon the

Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252.

20. That, upon information and belief, the Municipal Hearing in this matter was adjourned on consent of the parties and has not been rescheduled.

21. This action is commenced within one year and ninety days after the alleged state law cause(s) of action arose.

22. As a result of the foregoing, Plaintiff TODD PHILLIP sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

23. Plaintiff TODD PHILLIP repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

24. That at the aforementioned time and place, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, placed Plaintiff TODD PHILLIP under arrest despite Defendants' knowledge that they lacked probable cause to do so.

25. That Plaintiff TODD PHILLIP had not committed any offense and Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

26. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were aware that

probable cause did not exist for the arrest and detention of Plaintiff TODD PHILLIP and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff TODD PHILLIP and such actions were committed in bad faith.

27. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff TODD PHILLIP and such actions were committed in bad faith.

28. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff TODD PHILLIP was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

29. As a further result of the above-described acts, Plaintiff TODD PHILLIP was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

30. Plaintiff TODD PHILLIP repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

31. That Plaintiff TODD PHILLIP was falsely imprisoned from December 26, 2019, to December 28, 2019, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD

NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

32. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, intended to confine Plaintiff TODD PHILLIP and Plaintiff TODD PHILLIP was conscious of the confinement, and Plaintiff TODD PHILLIP did not consent to the confinement.

33. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff TODD PHILLIP and damaging Plaintiff TODD PHILLIP in his reputation and depriving him of his liberty.

34. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff TODD PHILLIP suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

35. Plaintiff TODD PHILLIP repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, misrepresented and falsified evidence before the District Attorney.

37. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, did not make a complete and full statement of facts to the District Attorney.

38. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, withheld exculpatory evidence from the District Attorney.

39. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were directly and actively involved in the initiation of criminal proceedings against Plaintiff TODD PHILLIP.

40. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, lacked probable cause to initiate criminal proceedings against Plaintiff TODD PHILLIP.

41. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, acted with malice in initiating criminal proceedings against Plaintiff TODD PHILLIP.

42. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were directly and actively involved in the continuation of criminal proceedings against Plaintiff TODD PHILLIP.

43. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, lacked probable cause to continue criminal proceedings against Plaintiff TODD PHILLIP.

44. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, acted with malice in continuing criminal proceedings Plaintiff TODD PHILLIP.

45. That Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

46. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS

RODRIGUEZ, TAX ID. NO. XX4252, the criminal proceedings were terminated in Plaintiff TODD PHILLIP's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

47. Plaintiff TODD PHILLIP repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

48. The level of force employed by Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, was objectively unreasonable and in violation of Plaintiff TODD PHILLIP's constitutional rights.

49. As a result of the aforementioned conduct of Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, Plaintiff TOSS PHILLIPS was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

50. Plaintiff TODD PHILLIP repeats, reiterates and realleges each and every allegation contained in this complaint.

51. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff TODD PHILLIP's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

52. As a result of the aforementioned conduct of the individual Defendants, Plaintiff TODD PHILLIP's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

53. Plaintiff TODD PHILLIP repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

54. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

55. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

56. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff TODD PHILLIP.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff TODD PHILLIP as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff TODD PHILLIP as alleged herein.

59. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff TODD PHILLIP's constitutional rights.

60. All of the foregoing acts by defendants deprived Plaintiff TODD PHILLIP of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

61. Plaintiff TODD PHILLIP repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

62. On or about December 26, 2019, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, commenced a criminal proceeding against Plaintiff TODD PHILLIP, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

63. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff TODD PHILLIP had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

64. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were directly and actively involved in the initiation of criminal proceedings against Plaintiff TODD PHILLIP.

65. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, lacked probable cause to initiate criminal proceedings against Plaintiff TODD PHILLIP.

66. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were motivated by actual malice in initiating criminal proceedings against Plaintiff TODD PHILLIP

67. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, misrepresented and falsified evidence before the District Attorney.

68. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, did not make a complete and full statement of facts to the District Attorney.

69. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, withheld exculpatory evidence from the District Attorney.

70. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were directly and actively involved in the continuation of criminal proceedings against Plaintiff TODD PHILLIP.

71. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, lacked probable cause to continue criminal proceedings against Plaintiff TODD PHILLIP.

72. Defendants POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, were motivated by actual malice in continuing criminal proceedings against Plaintiff TODD PHILLIP.

73. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff TODD PHILLIP's favor.

74. As a result of the foregoing, Plaintiff TODD PHILLIP is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff TODD PHILLIP demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER MICHAEL VISINTIN, SHIELD NUMBER 14001, and POLICE OFFICER KELVIS RODRIGUEZ, TAX ID. NO. XX4252, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
December 5, 2022



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

TODD PHILLIP

180 South Broadway, Suite 306

White Plains, New York 10605

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

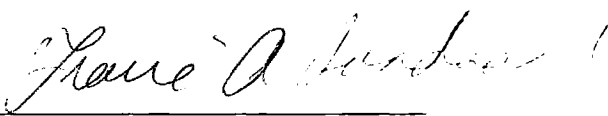
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
December 5, 2022



TRACIE A. SUNDACK